

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED**

2260 N Street, Merced
627 W. 21st Street, Merced
1159 G Street, Los Banos

Wednesday, July 29, 2026

Tentative rulings are provided for the following courtrooms and assigned Judicial Officers with scheduled civil matters:

Courtroom 8 – Hon. Stephanie L. Jamieson

Courtroom 9 – Commissioner David Foster

Courtroom 12 – Hon. Jennifer O. Trimble

Parties who wish to appear remotely must contact the clerk of the court at (209) 725-4111 to seek permission and arrange for a remote appearance.

IMPORTANT: Court reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and may only be activated upon request.

The tentative rulings for specific calendars follow:

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Wednesday, July 29, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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17CV-02586	Victor Arteaga, et al. vs State of California, et al.
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Order to Show Cause re: Dismissal – Notice of Settlement

Appearance required. Appear to address status of settlement agreement and request for dismissal.

Order to Show Cause re: Sanctions

Attorney David Shane is ordered to appear and show cause why sanctions should not issue for failing to appear at prior hearings, including June 29, 2026, and for failing to communicate with opposing counsel regarding the status of pending releases or any other actions necessary to the execution of the settlement agreement.

20CV-03465 Sherise Woolridge vs Jain Farm Fresh Foods, Inc.

Status Conference re: Arbitration.

Pursuant to the joint status report filed July 13, 2026, this hearing is CONTINUED to January 13, 2027, at 8:15 a.m.

23CV-00355 Elizabeth De La Garza vs City of Merced, et al.

Motion for Summary Judgment

Continued to August 12, 2026, at 8:15 a.m. in Courtroom 8, to allow Defendant to file a supplemental reply.

Defendant correctly asserts that Plaintiff's opposition was due on July 9, 2026, and was untimely filed on July 15, 2026. As California has a preference for deciding cases on their merits and not due to procedural errors, Defendant is granted additional time to file supplemental briefing.

Defendant's supplemental reply, and any supporting documents, is to be filed and served by 5:00 p.m. on August 5, 2026.

24CV-02073 U.S. Bank National Association vs Gurpal Suner, et al.

Order of Examination (Non-Appeal)

Appearance required. No proof of service of the order of examination on judgment debtor has been filed with the court.

24CV-04322 City of Merced vs BNZ Diversified Corp., et al.

Trial Setting Conference

Appearance required. Appear to select trial dates.

25CV-02302 Carlos Barajas, Junior vs Kept Companies, Inc.

Status Conference re: Arbitration.

CONTINUED pursuant to the joint status report filed by the parties on July 20, 2026, to February 3, 2027, at 8:15 a.m. to allow time for the parties to complete proceedings related to the settlement of class and PAGA claims in related matters.

Motion for Summary Judgment

Defendant's unopposed motion for summary judgment is GRANTED.

Upon consideration of all the evidence set forth in the moving papers the court finds that there is no triable issue of material fact and Defendant is entitled to judgment as a matter of law.

Defendant filed a separate statement of undisputed material facts, supported by admissible evidence, containing undisputed material facts that establish Plaintiffs' claims are barred by failing to file their lawsuit within the one-year provision of their policy.

This shifts the burden to Plaintiffs to show the existence of one or more triable issues of material fact. (Code Civ. Proc., § 437c, subd. (p)(2).) By not filing any opposition, including a separate statement, Plaintiffs have failed to meet their burden.

Defendant is ordered to prepare and file a proposed order and judgment consistent with this ruling within five (5) days.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Temporary Judge Alexandria Carl
Courtroom 9

627 W. 21st Street, Merced

Wednesday, July 29, 2026
10:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

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Case No.	Title / Description
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20CV-02556	Cavalry SPV I, LLC vs. Sheila Rodrigues
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Order to Show Cause Re: Dismissal - Notice of Settlement

Continued from April 29, 2026. The Court's previous tentative ruling:

On November 1, 2021, Plaintiff filed a Notice of Settlement indicating conditional settlement and that a request for dismissal would be filed no later than April 14, 2026. No request for dismissal has been filed. If no party appears to request more time to complete the settlement, the Court will dismiss the action pursuant to rule 3.1385(c)(2) of the California Rule of Court.

24CV-02155	Synchrony Bank vs. Maria Larios
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Status Review of Settlement

Appearance required unless a notice of conditional settlement or request for dismissal is filed prior to the hearing. Appear to address status of settlement.

25CV-01031 Onemain Financial, LLC vs. Leticia Toro

Claim of Exemption

Appearance by judgment debtor is required.

25CV-02808 TD Bank USA, N.A. vs. Ma Guarneros

Order to Show Cause Re: Monetary Sanctions

Appearance required. Appear to show cause why the Court should not impose monetary sanctions on Plaintiff's counsel of record and Defendant for their failure to attend the case management conference on May 8, 2026, and failure to file case management conference statements.

Case Management Conference

Appearance required.

25CV-03330 Pedro Castaneda vs. Justin Slate

Citation Civil Bench Warrant

Appearance required.

25CV-03976 Chandra Martinez vs. Marisela Duran

Citation Civil Bench Warrant

Appearance required.

25CV-05371 Bank of America, N.A. vs. Johnny Carrillo

Motion to Deem Admitted Requests for Admission

The unopposed motion by plaintiff Bank of America, N.A., for an order deeming admitted the genuineness of any documents and the truth of any matters specified in plaintiff's Requests for Admission, Set One, served on defendant Johnny Guadalupe Carrillo is GRANTED. (Code Civ. Proc., § 2033.280, subd. (b).) It is undisputed that Defendant has not served a response to the requests for admissions. The Court notes that Plaintiff has not requested monetary sanctions.

The Court will sign the proposed order submitted with the moving papers.

26CV-02160

[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

26CV-03640

[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Demurrer to Complaint

Defendants' general demurrer to the complaint on the ground the complaint fails to allege proper notice is OVERRULED. A demurrer challenges only defects appearing on the face of the pleading or from matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318; Code Civ. Proc., § 430.30.) The complaint alleges all the necessary facts to constitute a cause of action for unlawful detainer against Defendants based on a three-day notice to pay rent or quit. (Code Civ. Proc., §§ 1161(2), 1166.)

Defendants' general demurrer to the complaint on the ground notice is defective under Civil Code section 1946.2, subdivision (c) is OVERRULED. The complaint asserts a cause of action for unlawful detainer under Code of Civil Procedure section 1161(2), not section 1161(3) as argued by Defendants.

Defendants' general demurrer to the complaint on the ground that the pleading does not state facts sufficient to constitute a cause of action is OVERRULED for the reasons stated above.

Defendants' special demurrer to the complaint for uncertainty is OVERRULED. The complaint alleges all the necessary facts to constitute a cause of action for unlawful detainer against defendants and is not so vague and ambiguous that the responding party "cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed at [them]." (*Khoury v. Mally's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.)

Defendants shall file their answer within five days of notice of entry of order. (Cal. Rules of Court, rule 3.1320(g); Code Civ. Proc., § 472b.)

Plaintiff is directed to prepare and submit a written order for the Court's signature as required by the California Rules of Court and serve notice of entry of order on Defendants.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Wednesday, July 29, 2026
1:30 p.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

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Case No.	Title / Description
25CV-01042	JPMorgan Chase Bank, N.A. vs. Mimi Carter
Court Trial	
Appearance required.	
25CV-01291	Bank of America, N.A. vs. Alejandro Bueno
Court Trial	
Appearance required.	

25CV-02101 Discover Bank vs. Patricia Schultz

Court Trial

Appearance required.

25CV-02321 Capital One, N.A. vs. Kyle Baron

Court Trial

Appearance required.

25CV-02821 American Express National Bank vs. David Giron

Court Trial

Appearance required.
